

Court No. - 32

Case :- WRIT - C No. - 31060 of 2018

Petitioner :- Mohd. Usman

Respondent :- Dakkshinachal Vidyut Vitran
Nigam Ltd. And 4 Others

Counsel for Petitioner :- A.K. Mishra, Rahul
Mishra

Counsel for Respondent :- Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

As prayed by the learned counsel appearing on behalf of the Electricity Department, put up this matter as fresh on 18th September, 2018 to enable him to seek instructions in the matter.

Order Date :- 13.9.2018

Arun

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**Respondent :- Dakkshinachal Vidyut Vitran Nigam Ltd.
And 4 Others**

Counsel for Petitioner :- A.K. Mishra, Rahul Mishra

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition has been filed, inter alia, for the following reliefs:-

"(i) Issue a writ, order or direction in the nature of certiorari calling for the records and quashing the order dated 28.08.2018 (Annexure-8 to this writ petition) passed by the Executive Engineer, Electricity Distribution Division (Goverdhan), Mathura disconnecting the electricity supply of the petitioner flour mill.

(ii) issue a writ, order or direction in the nature of certiorari for quashing the provisional assessment order dated 16.08.2018 (Annexure No. 6 to this writ petition) issued from the Office of Executive Engineer, Electricity Distribution Division (Goverdhan), Mathura.

(iii) Issue a writ, order or direction in the nature of mandamus directing the respondents to forthwith restore the electricity connection of the petitioner's flour mill i.e. M/S Great Taj Flour Mill."

At the very outset, Sri Kamal Kesarwani holding brief of Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department has stated that the provisional assessment order along with notice has been issued to the petitioner directing him to appear before the authority concerned on 28.09.2018 at 2.00 PM to represent his case.

Learned counsel for the petitioner has vehemently argued that the electricity supply has

been disconnected by the Electricity Department by order dated 28.08.2018 without giving him any opportunity of hearing.

Heard learned counsel for the parties and perused the record.

From the perusal of record, it is evident that during the course of inspection, the petitioner was found allegedly committing theft of electricity, as such, the first information report dated 14.08.2018. was lodged against the petitioner under Section 135 Electricity Act. It has also come on record that a large crowd had collected at the spot which prevented the Officers of the Electricity Department from disconnecting the electricity supply of the premises of the petitioner, however later on, on 28.08.2018 the electricity supply of the petitioner was disconnected by the Electricity Department.

Clause 8.1(viii) of the Electricity Supply Code, 2005 empowers the Electricity Department to disconnect the electricity supply forthwith on the spot, in case the consumer found committing the theft of electricity, as such, the Authority concerned was prima facie fully justified in disconnecting the electric supply.

The petitioner, who has been asked to appear on 28.09.2018 at 2.00 PM before the authority concerned may raise all his grievance before it which shall be redressed by it by a speaking order.

In view of the above, we do not see any justification to interfere in the matter. The writ petition is, accordingly, dismissed.

Order Date :- 18.9.2018/Arun